

Request for a Written Parliamentary Question

*Letter to Andy Slaughter MP — Access to Justice for Disabled Litigants —
FPR Part 3A Rule 3A.9 Enforcement Gap*

Case references

BV20D01752 | AC-2025-LON-004293 | BL-2024-001217
FPR Part 3A rr. 3A.4 & 3A.9 | PD 3AA paras 1.2 & 1.3 | Equality Act 2010
ss.20-21 | Autism Act 2009

Referred to:

Andy Slaughter MP
House of Commons
London SW1A 0AA

Nadia Zahmoul

Litigant in Person

27 March 2026

Veritas Numquam Perit

DEAR MR SLAUGHTER,

RE: Request for a Written Parliamentary Question — Access to Justice for Disabled Litigants — FPR Part 3A Rule 3A.9 Enforcement Gap

Case references: BV20D01752 (Family Division) · AC-2025-LON-004293 (Administrative Court) · BL-2024-001217 (Chancery)

Legal framework: FPR Part 3A (rr. 3A.4, 3A.9) · Practice Direction 3AA · Equality Act 2010 ss.20–21 · Autism Act 2009

WHY I AM WRITING TO YOU

I am aware that MPs ordinarily assist their own constituents. I am writing to you because I have already exhausted that route.

My constituency MP is Joe Powell MP (Kensington and Bayswater). I contacted him on 26 February 2026 specifically requesting that he table a Written Parliamentary Question. He has not responded. I have contacted his office on multiple occasions since October 2025. None of those contacts have received a substantive reply.

I am therefore respectfully approaching MPs who have demonstrated an interest in the specific issues raised in my case — court access for disabled people, enforcement of the Autism Act 2009, and HMCTS accountability — and asking whether any one of them would be willing to table a Written Parliamentary Question and, if possible, raise the matter orally.

THE LEGAL FRAMEWORK

The governing rules are Family Procedure Rules Part 3A and Practice Direction 3AA. The relevant provisions are:

FPR Rule 3A.4 — Court's continuing duty throughout proceedings

The court must consider whether a party's participation in the proceedings is likely to be diminished by reason of vulnerability and, if so, whether it is necessary to make one or more participation directions. This duty applies throughout proceedings — not only at trial.

FPR Rule 3A.9 — The revocation rule

The court must set out its reasons on the court order for making, varying, revoking or refusing any directions under Part 3A. This means a participation direction can only be revoked by a court order, with reasons, recorded on the order. There is no provision for directions to lapse administratively or cease without judicial oversight.

Practice Direction 3AA paragraph 1.3 — Continuous duty

It is the duty of the court and of all parties to identify any party or witness who is a vulnerable person at the earliest possible stage of any family proceedings. The duty is continuous — it does not end when a trial concludes.

Practice Direction 3AA paragraph 1.2 — Purpose

This Practice Direction sets out the procedure and practice to be followed to achieve a fair hearing by providing for appropriate measures to be put in place to ensure that the participation of parties and the quality of the evidence of the parties and other witnesses is not diminished by reason of their vulnerability.

The rules are unambiguous. A participation direction can only be revoked by a court order with reasons. There is no provision for directions to lapse administratively, to cease on the conclusion of a trial, or to be withdrawn without judicial oversight.

WHO I AM AND WHAT HAPPENED

I am Nadia Zahmoul. I am 56 years old, autistic (diagnosed by the NHS CLAAS service, 1 July 2025), and have PTSD (diagnosed 2013). I am a litigant in person in four parallel High Court proceedings. I have no legal representation and no income.

During my divorce trial in February 2024 (BV20D01752, High Court Family Division, MacDonald J), the court formally recognised my vulnerability and granted participation directions under FPR Part 3A. Those directions enabled me to participate in the trial.

The day the trial ended, those participation directions ceased. There was no court order revoking them. No hearing. No reasons. No record on the court file — in direct breach of FPR Rule 3A.9.

THE NHS CLINICAL EVIDENCE — VERBATIM

The following three passages are quoted verbatim from NHS clinical documents on the court record. They are not my assertions. They are independent clinical observations by qualified NHS clinicians.

> *"While helpful adjustments were made during the hearing phase (e.g., regular breaks, advocacy against harmful questions), these have since been withdrawn, despite the negotiation phase continuing to place significant demands on you. This, alongside financial and emotional strain, has negatively impacted your wellbeing. You described difficulty sleeping, teeth grinding, regular emotional breakdowns, and heightened anxiety."*

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> Dr Catherine Cheung, Principal Clinical Psychologist & Sophia Iacovou, Assistant Psychologist — Central London Adult Autism Service (CLAAS), CLCH NHS Trust — Full Autism Diagnostic Assessment Report, 1 July 2025

> *"During the autism assessment and follow-up meetings, we observed increasing levels of distress, which have affected your ability to maintain consistent self-care, sleep and eat well, and regulate your emotions. You spoke openly about these challenges, attributing much of your distress to the ongoing legal proceedings and the withdrawal of reasonable adjustments by the court."*

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> Dr Catherine Cheung & Sophia Iacovou — CLAAS, CLCH NHS Trust — Risk and Mental Health section, Full Autism Diagnostic Assessment Report, 1 July 2025

> *"Nadia has reported significant distress following the recent withdrawal of previously granted accommodations in court, which has impacted her ability to express herself effectively. We strongly recommend that the above adjustments be implemented consistently throughout the remainder of the proceedings."*

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> Dr Catherine Cheung, Service Lead & Principal Clinical Psychologist — CLAAS, CLCH NHS Trust — Autism Diagnosis and Recommendations for Reasonable Adjustments (letter addressed to the court), 3 July 2025

Three things are notable about these passages taken together. First, they come from the Service Lead of the Central London Adult Autism Service — the highest clinical authority within that NHS service. Second, the 3 July 2025 letter was addressed directly to the court. It was not a private clinical record. It was a formal NHS clinical recommendation placed before the court in proceedings. Third, the phrase *"withdrawal of reasonable adjustments by the court"* is the clinician's own language. It is not my characterisation. It is an independent NHS clinical finding.

The court received that letter. The post-trial orders — the draft final order and the costs order — were made after that letter was on the court file. No participation review was conducted. No ground rules hearing was listed. The orders proceeded.

WHAT THE ABSENCE OF PARTICIPATION DIRECTIONS ACTUALLY MEANT

In the period from February to June 2024 — after the trial ended but before the final orders were made — the draft final order and the costs order were both prepared and made without my participation. The reason is that my Part 3A participation directions had been revoked immediately after trial, in breach of Rule 3A.9, with no court order, no hearing, and no reasons.

The proceedings did not end when the trial ended. The proceedings continued through the post-trial period in which draft orders were exchanged. Rule 3A.4 places a continuing duty on the court to consider participation throughout proceedings. That duty applied to the post-trial period. It was not discharged.

The orders were not sent to me for input in the normal way. They passed directly between the judge's clerk and Campbell KC, acting for the other side. I was structurally excluded from the process that produced the orders which are now being enforced against me.

This is the core factual basis for three things simultaneously:

- 1. The criminal referral** — the final order was made on false evidence through a process from which I was excluded. Filed with the Metropolitan Police Service on 20 March 2026 (CCR-6501-26-0100-000).
- 2. The Chancery stay application** — the Detach debt of £1,008,848.42 now being enforced was triggered by that final order, produced through a process from which I was excluded under Rule 3A.9.
- 3. The judicial review** — the participation directions that should have continued under Rule 3A.4 were gone, and no institution has ever identified a court order revoking them as required by Rule 3A.9. That is the administrative void at the centre of AC-2025-LON-004293.

WHAT I HAVE ALREADY DONE

Date	Body	What was filed / requested	Outcome
20 Oct 2025	HMCTS / MoJ	Pre-Action Protocol letter. Formal notice of FPR Part 3A breach including failure to comply with Rule 3A.9.	No substantive response. HMCTS 14 Nov classifies all matters as judicial without identifying any court order revoking the participation directions.
28-31 Oct 2025	HMCTS, MoJ, Ministers	Stages 1-3 escalation. Sent to HMCTS CEO, MoJ Permanent Secretary, Sarah Sackman MP, Alex Davies-Jones MP.	Automated acknowledgements only.
3 Nov 2025	David Lammy MP, Wes Streeting MP	Ministerial letter — Autism Act 2009, Equality Act 2010 and FPR Part 3A.	No response from either Minister.
10 Nov 2025	PHSO via Joe Powell MP	Referral to PHSO — Case Reference C-2182742.	PHSO declined — JR not yet exhausted. JR filed 1 Dec 2025.
24 Oct 2025	House of Lords Autism Act 2009 Committee	Written evidence on the enforcement gap.	Report <i>Time to Deliver</i> 23 Nov 2025. Paras 136-139 confirm enforcement gap.
1 Dec 2025	Administrative Court	JR filed — AC-2025-LON-004293. Grounds	Permission refused 4 Dec. Restructured and

		include failure to comply with Rule 3A.9.	resubmitted.
16-23 Feb 2026	Justice Committee, Parliament	Statement of Undetermined Matters. Five binary questions placed on parliamentary record.	No response before 12 March 2026.
11 Mar 2026	Collins Rice J	Permission refused. TWM. Costs £3,125.50. Rule 3A.9 not addressed in the order.	Refused TWM. Revocation application filed 12 March 2026.
13 Mar 2026	Justice Committee, Parliament	Written evidence: JR refusal, CPR 3.1(7) revocation, complete timeline.	On parliamentary record. No response.
20 Mar 2026	MPS, CPS, NCA, Justice Committee, Lord Chancellor	Criminal referral — 244 pages — MIPO, perjury, fraud on the court.	CCR-6501-26-0100-000 registered 26 March 2026.
20 Mar 2026	EHRC, Victims Commissioner, Women and Equalities Committee	Evidence of systemic PSED failures and disability discrimination.	Auto-responses or no response.
26 Feb 2026	Joe Powell MP	Written to constituency MP requesting a Written Parliamentary Question.	No response.

THE QUESTION I AM ASKING YOU TO TABLE

The proposed question uses the exact statutory language of FPR Rule 3A.9 — the word *revoked*, which is the rule's own word. It names the post-trial period explicitly because that is where the breach had its most serious practical consequences.

Proposed Written Parliamentary Question

> To ask the Secretary of State for Justice: under Family Procedure Rules Part 3A, what is the procedure by which a participation direction may be revoked; whether a court order with reasons is required under rule 3A.9 before a participation direction can be revoked; whether the duty to consider participation directions under rule 3A.4 continues throughout proceedings, including during the post-trial period in which draft orders are exchanged and costs orders are made; and what recourse is available to a disabled party whose participation directions have ceased without any court order, hearing, or reasons being given.

Addressed to: The Secretary of State for Justice (David Lammy KC MP)

Legal basis: FPR rr. 3A.4 and 3A.9 · Practice Direction 3AA paragraphs 1.2 and 1.3

A Written Parliamentary Question obligates the Minister to respond within five sitting days. That response is published in Hansard — permanent, searchable, public. It cannot be ignored, redirected or suppressed.

REQUESTING ORAL SCRUTINY IN ADDITION TO THE WRITTEN QUESTION

A Written Parliamentary Question produces a written answer only — there is no oral hearing and I cannot attend. I am also asking whether you would be willing to raise this matter orally through one of the following mechanisms:

Option 1 — Westminster Hall Debate

Any MP may apply for a Westminster Hall debate on a matter of public concern. A debate on the enforcement gap in FPR Part 3A — drawing on the House of Lords Autism Act 2009 Committee report *Time to Deliver* and on my case as the first known test case — would require a Minister to respond in person in a public proceeding. I could attend as a member of the public. The Minister's oral response would be on the Hansard record.

Option 2 — Oral Question at Justice Questions

Oral questions to the Secretary of State for Justice are allocated by ballot. If you were successful in the ballot, you could raise this directly in the Chamber. Again, I could attend as a member of the public and the Minister's answer would be on the record.

Being present when this question is put to a Minister matters to me. I have been excluded from every process that has affected me. Attending as an observer when the question is raised — even in the public gallery — would be significant.

URGENT TIMETABLE — DECLINING PHYSICAL AND MENTAL HEALTH

The medical position requires me to ask for a compressed timetable.

The CLAAS clinical team observed during the assessment itself — as quoted above — increasing levels of distress affecting self-care, sleep, and emotional regulation, attributing much of that distress to the ongoing legal proceedings and the withdrawal of reasonable adjustments by the court. That observation was made in July 2025. The proceedings have not resolved. The adjustments have not been reinstated. The distress has not abated.

Dr Bruce Hayse, my treating physician in Wyoming, stated in his report of 17 October 2025 that delay, administrative silence, and procedural uncertainty are themselves clinically harmful to me, and that continuing without resolution poses a foreseeable risk of further psychiatric destabilisation. I was hospitalised three times in 2025 — March, June, and November — each time with acute psychiatric crises clinically linked to these proceedings by independent NHS clinicians.

The Detach debt of £1,008,848.42 is accruing interest daily. The CPR 3.1(7) revocation application in the Administrative Court has been unanswered for 14 days. I am managing all of this without legal representation, without income, and without participation measures.

I am therefore asking for the following timetable:

- **Acknowledgement of this letter:** within 3 days.
- **Confirmation whether you will table the Written Parliamentary Question:** within 7 days.
- **If you are not willing to table it:** written reasons within 7 days.
- **Placement of this letter and the enclosed Statement of Abuse of Process on the Justice Committee written evidence record:** at your earliest convenience.

I note for the record that if no response is received within 7 days, that non-response will be documented and placed before the Metropolitan Police Service (CCR-6501-26-0100-000), the PHSO (Case Reference C-2182742), and the EHRC (ref 14765260) as evidence of continuing institutional silence in circumstances of known and documented medical risk.

WHY THIS MATTERS BEYOND MY CASE

The House of Lords Autism Act 2009 Committee identified my judicial review as the first known test case seeking to enforce Autism Act statutory duties against a central public authority. It was certified Totally Without Merit without any oral hearing and without engagement with the FPR Part 3A grounds at its centre.

Minister of State for Care Stephen Kinnock MP told the Committee in August 2025: "*There are no statutory powers of intervention — a failure could only be considered by the courts using judicial review.*" The courts are where the failure is now occurring. Rule 3A.9 is mandatory. No court order revoking the participation directions was ever made. Every institution redirected to judicial review. Judicial review certified the claim Totally Without Merit.

The Written Parliamentary Question I am asking you to table would require the Government to state publicly, for the first time, whether FPR Rule 3A.9 means what it says, and what happens to a disabled court user when it is not followed.

All documents are publicly available at: github.com/nadiazahmoul/JR-Zahmoul-v-SSJ-HMCTS-Archive

Yours sincerely,

Nadia Zahmoul

Defendant, Litigant in Person

nadia@rosekross.com · 27 March 2026

APPENDIX — KEY FACTS AT A GLANCE

BV20D01752 | CA-2024-001342 | AC-2025-LON-004293 | BL-2024-001217 | FA-2026-000019 | N08YX064
CCR-6501-26-0100-000 | 0103/17APR26 | Nadia Zahmoul, Litigant in Person | nadia@rosekross.com

Item	Detail
Proceedings	BV20D01752 (Family) · AC-2025-LON-004293 (JR) · BL-2024-001217 (Chancery)
Diagnosis	Autism Spectrum Condition — CLAAS NHS, 1 July 2025. PTSD — 2013.
Rule 3A.4	Court must consider participation throughout proceedings. Duty is continuous — applies post-trial including to draft orders and costs orders.
Rule 3A.9	Court must set out reasons on the court order for making, varying, revoking or refusing any participation direction. No direction can be revoked without a court order with reasons.
What happened	Participation directions granted at trial 19–28 February 2024. Ceased after trial. No court order. No hearing. No reasons. Breach of Rule 3A.9.
Post-trial exclusion	February to June 2024 — draft final order and costs order prepared and made without NZ participation. Orders passed directly between judge's clerk and Campbell KC. NZ structurally excluded.
CLAAS clinical finding — 1 July 2025	<i>"These have since been withdrawn, despite the negotiation phase continuing to place significant demands on you."</i> — Dr Catherine Cheung, CLAAS, 1 July 2025.
CLAAS clinical finding — 3 July 2025 (court letter)	<i>"Nadia has reported significant distress following the recent withdrawal of previously granted accommodations in court... We strongly recommend that the above adjustments be implemented consistently throughout the remainder of the proceedings."</i> — Dr Catherine Cheung, Service Lead, CLAAS, 3 July 2025. This letter was addressed directly to the court.
Consequence	Final order 24 May 2024 triggered Detach debt of £1,008,848.42 now enforced. Costs order of £255,654 for disability symptoms. Both produced through a process from which NZ was excluded.
Hospitalisations in 2025	Three — March, June, November. All clinically linked to court proceedings by NHS clinicians.
JR outcome	AC-2025-LON-004293 certified Totally Without Merit, Collins Rice J, 11 March 2026. No oral hearing. Rule 3A.9 not addressed.
Criminal referral	CCR-6501-26-0100-000. Filed 20 March 2026. 244 pages. Core: perjury — Oxus shares \$565,000 in SEC filing 16 January 2024 vs \$0 sworn under oath 22 February 2024.
House of Lords Committee	<i>Time to Deliver</i> — 23 November 2025. Paras 136–139: enforcement gap confirmed. This JR identified as first known test case.

Timetable requested	Acknowledgement: 3 days. Confirmation re WPQ: 7 days. Non-response placed before MPS, PHSO and EHRC.
Constituency MP	Joe Powell MP (Kensington and Bayswater). Contacted multiple times including 26 February 2026. No substantive response.

PROPOSED WRITTEN PARLIAMENTARY QUESTION (FOR EASE OF REFERENCE)

> To ask the Secretary of State for Justice: under Family Procedure Rules Part 3A, what is the procedure by which a participation direction may be revoked; whether a court order with reasons is required under rule 3A.9 before a participation direction can be revoked; whether the duty to consider participation directions under rule 3A.4 continues throughout proceedings, including during the post-trial period in which draft orders are exchanged and costs orders are made; and what recourse is available to a disabled party whose participation directions have ceased without any court order, hearing, or reasons being given.

Legal basis: FPR rr. 3A.4 and 3A.9 · Practice Direction 3AA paras 1.2 and 1.3